

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SERGE TALUY,

Plaintiff,

**SUMMONS TO THE
VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK; DET. DANILO MALDONADO
SHIELD # 03237; SGT. LUTFI DALIPI and P.O. JOHN DOES #
1-5, the individual defendants sued individually and in their official
capacities,**Index:**Basis of Venue: occurrence of
incident – 494 New Lots Avenue,
Apt. # 2F, Brooklyn, New York

Defendants.

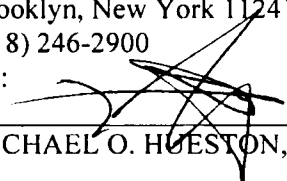
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To the above named defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: Brooklyn, New York
February 9, 2018MICHAEL O. HUESTON, ESQ.
ANDREW S. RENDEIRO, ESQ.
Attorneys for Plaintiff
16 Court Street, Suite 1800
Brooklyn, New York 11241
(718) 246-2900

By:


MICHAEL O. HUESTON, ESQ.

Defendants' addresses: THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007;
DETECTIVE DANILO MALDONADO, SHIELD # 03237; SGT LUTFI DALIPI and P.O. JOHN DOES #
1-10, 73th Precinct, 1470 East New York Ave., Brooklyn, NY 11212, the 75th Precinct 1000 Sutter Ave.
Brooklyn, NY 11208 and/or Borough Brooklyn North, 79 Wilson Ave, Brooklyn, New York 11237

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE KINGS

-----X

SERGE TALUY,

Plaintiff,

-against-

THE CITY OF NEW YORK; DET. DANILO
MALDONADO SHIELD # 03237; SGT LUTFI DALIPI
and P.O. JOHN DOES # 1-5, the individual defendants sued
individually and in their official capacities,

Defendants.

-----X

VERIFIED COMPLAINT

Index:

Basis of Venue: occurrence of incident
494 New Lots Avenue, Apt. # 2F,
Brooklyn, New York

Jury Trial Demanded

Plaintiff Serge Taluy, by and through his counsel, Michael O. Hueston, Esq., and
Andrew S. Rendeiro, Esq., upon information and belief, allege as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiff seeks relief for the violation of plaintiff's rights secured by 42 U.S.C. § 1983; and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Plaintiff's claims arise from an incident that arose on or about February 10, 2016 through February 11, 2016. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things: unlawful search and seizure; false arrest; unreasonable force; failure to intervene; conspiracy; denial of a fair trial and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, pursuant 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Plaintiff brings this action pursuant to 42 USC § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments.

3. Venue is proper in the Supreme Court of the State New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York and individual defendants are subject to personal jurisdiction in the Supreme Court of the State New York, Kings County; and jurisdiction is proper because the Supreme Court of the State New York, Kings County has jurisdiction over plaintiffs' federal causes of action pursuant to 42 U.S.C. § 1983.

PARTIES

4. Plaintiff Serge Taluy is a resident of the State of New York, Queens County, living at 210-30 113th Avenue, Queens Village, New York 11429.

5. At all times herein, defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiffs' rights as described herein.

6. At all times relevant, defendant City of New York maintained a police department known as the NYPD, which employed the individual defendants.

7. At all times alleged herein, defendants Det. Danilo Maldonado Shield # 03237, Sgt. Lutfi Dalipi and P.O. John Does # 1-5 were employed as police officers with the 75th Precinct and/or Borough Brooklyn North Narcotics, located in Kings County, New York, or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein.

8. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS**Incident**

9. On February 10, 2016, at approximately 8:25pm several police officers operating from the 75th Precinct and/or Borough Brooklyn North Narcotics, located in Kings County, New York, including upon information and belief, the individual defendants Det. Danilo Maldonado, Sgt. Dalipi and P.O. John Does # 1-5 (“the police”), at times acting in concert and at times acting independently, committed the following illegal acts against plaintiffs.

10. On February 10, 2016, at approximately 8:25 p.m. at and in the vicinity of 494 New Lots Avenue, Apt. # 2F, Brooklyn, New York, the police, without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime, unlawfully arrested plaintiff.

11. 494 New Lots Avenue, Apt. # 2F, Brooklyn, New York (“the apartment”) is a residential apartment.

12. Plaintiff was a visitor in the apartment.

13. Plaintiff was socializing in the apartment.

14. The police entered the apartment without a warrant.

15. The police forced their way into the apartment.

16. Upon information and belief, the police were looking for an individual other than plaintiff.

17. Once the police entered the apartment, plaintiff was not free to disregard the defendants’ questions, walk away or leave the scene.

18. The police pointed firearms at plaintiff.

19. The police took plaintiff and other individuals into the hallway outside the apartment.

20. The police took plaintiff and other individuals in the hallway and searched them.

21. The police found no contraband on plaintiff.

22. The police manhandled plaintiff and the other individuals.

23. The police handcuffed plaintiff and other individuals.

24. The handcuffs were excessively tight.

25. The police were abusive and rude to plaintiff.

26. The police found no basis to arrest to plaintiff.

27. Nevertheless, the police transported plaintiff to the 75th Precinct where his arrest was processed.

28. The police took plaintiffs personal property, including United States currency, phones, keys, and identification.

29. Upon information and belief, in order to cover up their illegal actions, the police, pursuant to a conspiracy, initiated by police reports, false sworn complaint(s) and/or conversations, falsely and maliciously told the Kings County District Attorney's Office that plaintiff had committed various crimes, and the District Attorney prosecuted plaintiff for criminal possession of a controlled substance in the seventh degree.

30. At arraignment, plaintiff was released on his own recognizance.

31. Plaintiff's case was adjourned for dismissal on December 15, 2016 and was dismissed and sealed on June 15, 2017, terminating in his favor, after the Kings County Criminal Court found there was an insufficient basis for their arrest and prosecution.

- 32. Plaintiff was humiliated and embarrassed by the experience.
- 33. Plaintiff suffered physical injuries.
- 34. Plaintiff suffered financial loss.

General Allegations

35. Plaintiff did not resist arrest at any time during the above-described incidents.

36. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

37. The individual defendants did not observe plaintiff violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

38. The individual defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiffs of their rights.

39. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

40. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiffs' rights.

FIRST CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)

41. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

42. Defendants unlawfully searched and seized plaintiff without a lawful warrant, cause, consent, and/or beyond the scope of any warrant.

43. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

44. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

45. Defendants falsely arrested plaintiff without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiffs had committed a crime.

46. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

THIRD CLAIM**(UNREASONABLE FORCE)**

47. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

48. The individual defendants' use of force upon plaintiff was objectively unreasonable.

49. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff.

50. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

51. Accordingly, the defendants are liable to plaintiff for using unreasonable force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FOURTH CLAIM**(FAILURE TO INTERVENE)**

52. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

53. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

54. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FIFTH CLAIM**(CONSPIRACY)**

55. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

56. Defendants are liable to plaintiff because they agreed to act in concert to inflict an unconstitutional injury; and committed an overt act done in furtherance of that goal causing damage to plaintiff under 42 U.S.C. § 1983.

SIXTH CLAIM**(DENIAL OF A FAIR TRIAL)**

57. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

58. The individual defendants are liable to plaintiff because they intentionally conspired to fabricate evidence against plaintiff, including omitting and/or manipulating evidence, and suppressing exculpatory evidence and forwarded that false evidence to police officers, prosecutors, and the court.

59. The individual defendants violated the law by either testifying falsely, providing false information, and/or drafting and signing false criminal court complaints and/or false police reports and forwarding them to police officers, prosecutors, and the court.

60. The individual defendants were on notice that creating fabricated evidence is a clear violation of law because it is well established that individuals who knowingly use false evidence to obtain a conviction act unconstitutionally, depriving plaintiff of liberty without due process of law or a fair trial, and the harm occasioned by such unconscionable actions are redressable in an action for damages under 42 U.S.C. § 1983, the Fair Trial Clause of the Sixth

Amendment to the United States Constitution, and the Due Process Clause of the Fourteenth Amendment to the United States Constitution.

SEVENTH CLAIM

(MONELL CLAIM)

61. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

62. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

63. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiff: (1) improperly entering premises; (2) unlawfully obtaining and executing warrants; (3) arresting innocent persons without cause in order to meet productivity goals; (4) using unreasonable force on individuals; and (5) fabricating evidence against innocent persons.

64. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

65. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

66. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

67. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

68. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiffs as alleged herein.

69. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

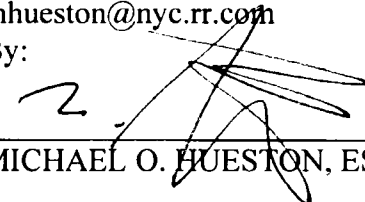
70. Accordingly, defendants are liable to plaintiff for damages that resulted from the conversion under New York State law.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants; and demands judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988

DATED: Brooklyn, New York
February 9, 2018

MICHAEL O. HUESTON, ESQ.
ANDREW S. RENDEIRO, ESQ.
Attorneys for Plaintiff
16 Court Street, Suite 1800
Brooklyn, New York 11241
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mhueston@nyc.rr.com

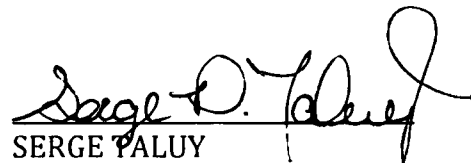
By:


MICHAEL O. HUESTON, ESQ.

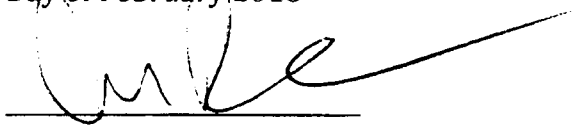
VERIFICATION

STATE OF NEW YORK):
 : SS:
COUNTY OF KINGS):

I, SERGE TALUY, being duly sworn, deposes and says that he, the Deponent, is the above named Plaintiff; that he has read the attached Verified Complaint and knows its contents; that the Verified Complaint is true to the best of his knowledge except as to those matters stated to be alleged upon information and belief and as to those matters he believes them to be true.


SERGE TALUY

Swore to before me this 9th
Day of February 2018



ANDREW RENDEIRO
Notary Public, State of New York
No. 02RE5012955
Qualified in Kings County
Commission Expires June 15, 2019

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

SERGE TALUY,

Plaintiff,

-against-

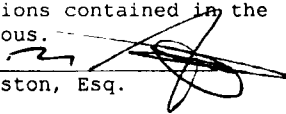
CITY OF NEW YORK, et al.,

Defendants.

SUMMONS AND COMPLAINT

MICHAEL HUESTON, ESQ.
ANDREW S. RENDEIRO, ESQ.
Attorneys for Plaintiff
16 Court St., Suite 1800
Brooklyn, New York 11241
(718) 246-2900

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law in the State of New York, certifies that, upon information and belief based upon reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 2/9/2018 Signature: 
Michael O. Hueston, Esq.

Due and timely, service is hereby
admitted.

Brooklyn, New York....., 2018

....., Esq.

Attorney for.....